

submissions were not to be considered if this would have required an adjournment of already scheduled oral proceedings (Art. 13(3) RPBA 2007).

5.4.2 Procedural economy

Under Art. 13(1) RPBA 2007 (which may still be applicable in certain transitional cases), the board had to exercise its discretion in view of the need for procedural economy, that is, the need to conclude proceedings swiftly and to create legal certainty. It also followed from the inter-relationship between Art. 12 and 13 RPBA 2007 that amendments made to a party's case **after filing of the grounds of appeal** did not form part of the subject of the appeal and so had to be admitted in order to be considered (T 253/10).

a) Late-filed requests

The state of the proceedings and the need for procedural economy taken together imply a requirement for a party to present appropriate requests as soon as possible if such requests are to be admitted and considered (T 1033/10, T 375/11, T 1245/11, T 2219/12). Requests filed very late (i.e. shortly before or during the oral proceedings) will therefore be admitted only if they are prima facie allowable. The admission of new requests at a very late procedural stage (shortly before the oral proceedings) is only in keeping with the principle of procedural economy if the requests are not unsuitable from the outset to overcome the doubts as to the allowability of the claims (T 978/05, T 1731/06, T 33/07, T 321/07, T 1650/08, T 486/14, T 1322/15). As far as procedural economy is concerned, an amendment at a late stage in the proceedings is justifiable if it is an appropriate and immediate reaction to unforeseeable developments in the previous proceedings which do not lie in the responsibility of the party submitting the amendment (T 1990/07, T 1354/11); that the board might alter its preliminary opinion is always a foreseeable possibility, for which parties generally have to be prepared (T 1714/14).

The amended claims must not give rise to circumstances relevant for the assessment of patentability which are so new that the other party cannot reasonably be expected to address them without the proceedings being unduly prolonged (T 651/03).

Both the timing of the filing of amended claims or auxiliary requests and the difficulty entailed in examining them are important criteria for deciding whether they can be admitted to the proceedings (T 397/01, T 81/03): the later the requests are filed, the less likely they are to be held admissible (T 942/05).

In T 412/12 the appellant filed a new auxiliary request at the last possible moment in the oral proceedings, namely after the fourth auxiliary request had already been discussed and found allowable. The board held its tactic of moving little by little towards filing a new auxiliary request "at the last minute" to be neither justified nor fair towards the other parties because admitting that request would have prolonged the proceedings substantially. Such a delay would have also run counter to the need for procedural economy at the stage that the proceedings had reached.

If an objection (made by a party and/or by the board) is not fully understood in a particular case, it is then incumbent on the party having difficulties in understanding an objection to make the appropriate effort at the earliest possible stage to have the objection clarified. A lack of understanding alone cannot justify postponing amendments to a party's case until a later stage in the proceedings (T 1033/10, see also T 2072/16).

b) Late-filed facts and evidence

As early as T 117/86 (OJ 1989, 401), it was pointed out that facts and evidence in support of an opposition which were presented after the nine-month period had expired were out of time and late, and might or might not be admitted into the proceedings as a matter of discretion under Art. 114(2) EPC 1973. Boards had to ensure that proceedings were conducted expeditiously, and other parties fairly treated. The parties should submit all the facts, evidence and arguments relevant to their case as early and completely as possible, particularly when such an evidence was already known to the party concerned (see T 101/87; T 237/89; T 951/91, OJ 1995, 202; T 34/01; T 1182/01; T 927/04; T 1029/05).

In T 188/05 the board did not share the appellant (opponent's) view that it was obliged to admit relevant evidence irrespective of how late it had been filed, provided that it cast doubt on the patent's validity. The case law of the boards of appeal establishes quite clearly that the first instance and the boards of appeal have a discretion to admit late-filed submissions and that the exercise of this discretion depends on the facts of each case but pertinent matters may include the relevance of the new material, whether it could have been produced before and if so why it was not, whether other parties and/or the board itself are taken by surprise, and how easily they can and whether they have adequate time to deal with it (see also T 1774/07, T 424/11).

In T 1449/05 the board stated that the discretion to permit amendment of a party's case may be exercised against a proprietor who seeks to resile at a late stage in the opposition appeal procedure from a previous long-standing acknowledgement or persistent tacit admission of prior art (likewise T 1682/09).

In T 874/03 the board, considering a prima facie highly relevant prior-art document first filed at the oral proceedings before it, explained that facts and evidence normally could not be admitted into the proceedings if their admission would lead to an adjournment of the proceedings (Art. 10b(3) RPBA 2003). However, an exception to that general rule was justified if the patent proprietor agreed to the admission of the fresh material (citing G 9/91, OJ 1993, 409).

In T 1488/08 the patent had been opposed under Art. 100(a) and (c) EPC 1973. In their written statement setting out the grounds of appeal, however, the appellants had only invoked lack of inventive step. The board noted that the new objections of added subject-matter and lack of novelty had only been raised after the respondents had submitted their reply. Their attempt to re-introduce them could therefore only be regarded as a change of position determined by procedural tactics ("salami" tactics). On that basis alone, the board considered, in view of procedural economy, that it should exercise its discretion not to admit the late filed objections.

In the board's view in T 2734/16, the late filing of citations coming to light by chance could not be regarded as admissible simply because they were in Japanese and might therefore have been difficult to find.

5.5. Case amended after oral proceedings arranged – Article 13(1) and (3) RPBA 2007

5.5.1 Whether discretion conferred under Article 13(3) RPBA 2007

Amendments sought to be made after the oral proceedings had been arranged were already subject to strict admission criteria under Art. 13(3) RPBA 2007, according to which they were not to be admitted "if they raise issues which the board or the other party or parties cannot reasonably be expected to deal with without adjournment of the oral proceedings." On the current position under the the RPBA 2020, see chapter V.A.4.5. "Third level of the convergent approach – submissions filed after notification of summons or after expiry of period specified in R 100(2) EPC communication – Article 13(2) RPBA 2020".

The board in T 232/08 considered that this meant the parties' right to be heard and/or procedural economy took precedence over other considerations; accordingly, in some decisions, the boards took the view that the provision left the decision-making board no room for discretion (see e.g. T 958/05, T 334/06, T 1847/08, T 2085/08, T 253/10, T 566/10, T 989/10, T 2189/11, R 5/11).

In much of the case law, however, the boards considered that Art. 13(1) and (3) RPBA 2007 left them room for discretion even in the period after oral proceedings had been arranged (see e.g. T 87/05, T 233/05, T 427/05, T 642/06, T 518/08, T 183/09, T 392/09, T 1457/09, T 1108/10, T 236/11, T 633/16, T 656/16, T 691/16, T 1439/16, T 2591/16, T 1801/17). In T 233/05 the board explained that Art. 13 RPBA 2007 reflected both the right to be heard (Art. 113 EPC 1973) and the discretionary power of a board to disregard facts or evidence which were not submitted in due time (Art. 114(2) EPC 1973). This was particularly true if such amendments were made at a very late stage, as was the case after oral proceedings had been arranged (Art. 13(3) RPBA 2007). Other decisions in which the boards referred to Art. 13(3) RPBA 2007 (or Art. 10b(3) RPBA 2003) and Art. 114(2) EPC include e.g. T 488/05, T 734/07, T 1314/10 and T 139/12.

The boards repeatedly held that amendments at a late stage were justified if they were a reasonable response to unexpected developments in the proceedings (see e.g. T 183/09, T 391/11, T 2385/11, T 1869/10).

In T 671/08 the late-filed argument was exceptionally admitted despite causing adjournment of the oral proceedings. The board considered the objection of insufficient disclosure filed by the appellant (opponent) just under two weeks before the oral proceedings to be a fundamental one that could not be ignored. The board stated that the fundamental nature of the new objection would have rendered any discussions on novelty and inventive step meaningless, had it been left unresolved. This case was an exception to the principles set out in Art. 13(3) RPBA 2007 where amendments to a party's case

should not be admitted into the proceedings when their admission would lead to an adjournment of the oral proceedings.

5.5.2 Late-filed requests

a) Filing of requests after arrangement of the oral proceedings

According to an approach frequently adopted by the boards, a request made after arrangement of the oral proceedings could be admitted and considered at the board's discretion under Art. 13(1) RPBA 2007 if (i) there were sound reasons for filing it so far into the proceedings (for example where amendments were occasioned by developments during the proceedings), (ii) the auxiliary request did not extend the scope of discussion determined by the grounds of appeal and the respondent's reply and (iii) the auxiliary request was clearly or obviously allowable (meaning that it had to be immediately apparent to the board, with little investigative effort on its part, that the amendments made successfully addressed the issue raised without giving rise to new ones) (see in particular T 1634/09, T 484/07, T 447/09, T 2344/09, T 1925/10, T 416/12, T 419/12, T 1605/14 and T 385/15; in T 416/12, T 419/12 and T 385/15, the board also referred to Art. 13(3) RPBA 2007). The amendments in question had to be liable, in principle, to serve as a basis for granting a patent (T 1748/08, T 2250/08).

In T 183/09 the board (citing T 397/01 in particular) explained in the context of Art. 13(1) and (3) RPBA 2007 that the boards had developed the following approach to exercising their discretion to admit late-filed amendments: Unless an amendment was **justified by developments** in the appeal proceedings – for example if it addressed objections or comments first raised in those proceedings – it would be admitted only if it did not extend the scope or framework of discussion determined by the decision under appeal and the statement of the grounds of appeal, and was moreover clearly allowable.

In T 81/03 the board found that requests filed shortly before the minimum deadline set by it in the summons to the oral proceedings also had to be regarded as belated where they contained points which could only be dealt with properly in an additional written phase. See also T 518/08.

In T 253/06, the board held that it was permissible under Art. 13(3) RPBA 2007 to regard as belated auxiliary requests filed after oral proceedings had been arranged but within the prescribed period, if those requests were not substantiated, i.e. not accompanied by reasons explaining why the amendments had been made and how they were intended to overcome the objections raised in the course of the proceedings (T 2422/09, T 351/10, T 2497/10). This conclusion holds all the more true, if such an unsubstantiated request is filed only shortly before the oral proceedings. In this respect an ex-parte is not different from an inter-partes case (T 1278/10).

Amended claims filed at such a late stage should be clearly allowable in the sense that it can be quickly ascertained that they overcome all outstanding issues without raising new ones (T 1126/97, T 1993/07, T 183/09).

Similarly, the board in T 1443/05 refused under Art. 13(3) RPBA 2007 to admit a second auxiliary request because, as a result of its late filing, the question whether it met the requirements of Art. 123(3) EPC 1973 could not be answered without adjourning the oral proceedings (see also T 1026/03, T 1305/05, T 455/06).

b) Filing of requests during the oral proceedings

Under Art. 15(6) RPBA 2007, the case was to be ready for decision at the conclusion of the oral proceedings before the board, unless there were special reasons to prevent this. An amendment at a late stage (and especially one made at the oral proceedings) was justifiable if it was an appropriate reaction to unforeseeable developments in the proceedings, for example if it addressed comments or objections first raised in those proceedings (T 391/11 and T 2385/11, both ex parte cases in which the matter was remitted to the department of first instance for further prosecution after admission of the requests; see also the inter partes case T 1869/10, in which, however, the board found there had been no unexpected development). On the current legal situation pursuant to the RPBA 2020, see chapter V.A.4.5. "Third level of the convergent approach – submissions filed after notification of summons or after expiry of period specified in Rule 100(2) EPC communication – Article 13(2) RPBA 2020".

The response to any such unexpected development had to come **as early as possible** (T 1990/07, T 1354/11, T 2072/16). In T 2072/16 the board held that the fact that it had confirmed its preliminary opinion after having heard the parties at the oral proceedings could not be considered a surprise or unforeseeable event (see e.g. T 2219/12, T 1033/10).

The general principle is that in order to be admissible, an amended claim belatedly filed in oral proceedings must be clearly allowable by virtue of a clearly permissible amendment (T 1273/04, T 1311/05, T 2238/09, T 1714/14). It must be immediately apparent to the board, with little or no investigative effort on its part, that amendments successfully address the issues raised without giving rise to new ones (T 5/10, T 1912/09, T 2219/12). According to T 1315/08 (ex parte) an especially strict standard should be applied to new requests not filed until the oral proceedings. As a rule, they could only be admitted if they eliminated minor objections to an otherwise allowable claim or if they were a reaction to debate in the oral proceedings, especially where this reaction was to limit the claim even further.

In T 183/09 the board, ruling on a number of auxiliary requests not filed until the oral proceedings, explained that, unless they were justified by developments in the appeal proceedings, they would be admitted only if they did not extend the scope or framework of discussion determined by the decision under appeal and the statement of the grounds of appeal, and were also clearly allowable. From this, the board inferred that **procedural economy**, that is, the need to conclude proceedings swiftly and so create legal certainty, played an increasingly dominant role as appeal proceedings progressed towards their end. In the final stages of appeal proceedings, it might in fact come to outweigh all other factors in the balance of interests that the board had to strike when deciding on the admissibility